

bers to inquire what proportion of the rents ought to be impounded, and what to be paid to the tenant for life.

7. **Mines and timber.** — In *Offley v. Offley* (*f*) a term was created for raising 10,000*l.* for a daughter's portion, but the term was so short that the ordinary *profits* of the land would not raise above half the sum. There was an open coal mine in the land which the Court ordered to be wrought, with powers to the trustees to make soughs and drains as need should require, and Lord Commissioner Hutchins said that in such a case where the *usual profits* of the land would not *raise the money appointed within the time*, the Court might order *timber* to be felled off the land to make up the amount.

8. **Out of rents by fixed annual payments.** — If the trusts of a term be to "raise and levy *from time to time* * a sum certain, by with and out of the rents and [*421] profits, by certain annual payments or sums in each year *and not otherwise*," the portional sum to be raised is a charge on the annual rents and profits generally, and the estate is not discharged at the expiration of six years, though the rents and profits during that period were sufficient to raise it (*a*).

9. **Mortgage of undivided shares of the estate.** — Where portions are raisable at different times as they are wanted, it is usual, as each portion is raised, not to mortgage the *entire* estate charged, but a proportional part only. Thus if the proportional sum be 6,000*l.* divisible among three younger children, and secured by a term of 1,000 years, when the first 2,000*l.* is raised, the trustee of the term mortgages an *undivided third part* of the hereditaments comprised in the term, and when the second 2,000*l.* is raised, another undivided third part, and when the remaining 2,000*l.* is raised, the other undivided third part. The result of this is, that each mortgage takes the *legal estate* in the subject of the mortgage, whereas if the entire estate had been comprised in the first mortgage, the two other securities would have been equitable, and exposed to all the consequent risks.

10. **Custody of title deeds.** — Trustees of a term of years

(*f*) Pr. Ch. 26.

(*a*) *Re Forster's Estate*, 4 L. R. Eq. 152.